

HISTORICAL BACKGROUND OF THE INDIAN CONSTITUTION

Company power -> parliamentary regulation -> Crown rule -> representation -> responsibility -> federal design -> sovereign Constitution

EXAM ENGINE: exact Act + institutional change + significance + operational/democratic limit

CONTROL: 1773 GG Bengal | 1833 GG India | 1858 Viceroy | 1909 electorate | 1919 dyarchy | 1935 autonomy

THE CONSTITUTIONAL QUESTION

1600 chartered commerce -> 1757 Plassey -> 1764 Buxar -> 1765 Diwani
-> corporate fiscal-territorial power without public accountability
-> 1773 Parliament begins statutory regulation
CONTROL TEST: who directs the executive, makes law, controls money and is represented?

1773-1793 CONTROL ARCHITECTURE

1773: GG of Bengal + council, Calcutta Supreme Court opened 1774
1781: official/revenue jurisdiction clarified, personal law recognised
1784: Board of Control + Court of Directors = metropolitan double government
1784-1793: stronger executive oversight, monopoly renewed, supervision charged to India
TRAP: Bengal Dual Government (1765-72) is not Pitt's double-government structure

1813-1853 CHARTER TRANSFORMATION

1813: monopoly ends EXCEPT tea/China, Crown sovereignty, missionaries, education grant
1833: GG of India (Bentley's Company trade ends, central legislation, Law Member
1853: legislative/executive work differentiated, ex councillors' four local members,
open competition route -> Macaulay Committee 1854, no fixed Company renewal
VERDICT: the Company ceased to be trader before it ceased to be ruler.

1858 CROWN TRANSFER

Company, Court of Directors and Board of Control abolished
-> Secretary of State for India + 15-member Council
-> Governor-General also Viceroy, Lord Canning first
CHANGE: corporate sovereignty => Crown sovereignty
LIMIT: accountability shifted to British, not to an Indian representative legislature.

REPRESENTATION WITHOUT RESPONSIBILITY

1861: nomination -> Indian non-officials, portfolio, provincial legislation, ordinances
1892: scrutiny -> budget discussion + questions, indirect election element
1909: segmented election -> separate Muslim electorates, central official majority,
S.P. Sinha first Indian in Viceroy's Executive Council
ANSWER: association -> scrutiny -> election, executive responsibility remains absent.

1919 DYARCHY

CENTRE: subject separation + bicameralism + direct restricted election
PROVINCES:
RESERVED -> finance, police, justice, prisons, land revenue -> Governor/Executive Council
TRANSFERRED -> education, health, agriculture, local government -> responsible ministers
OTHER: High Commissioner, provincial budgets, PSC -> Central PSC 1926, Chamber of Princes
FAILURE: responsibility without full finance, coercion or coordinating authority.

BRIDGE TO 1935

Simon Commission 1927 (all seven British) -> report 1930
-> Round Tables 1930/1931/1932 -> White Paper -> Joint Select Committee -> 1935 Act
Communal Award 1932 -> separate electorates for depressed classes proposed
-> Poona Pact -> reserved seats within joint electorates
TRAP: Simon alone did not author 1935 Poona Pact did not retain separate electorates.

1935 PROVIDED VERSUS OPERATED

PROVIDED: Federation + provinces + acceding princely states; three lists;
residualy allocation by Governor-General, central dyarchy
OPERATED: provincial autonomy from 1937, Federal Court from 1937
NOT COMMENCED: federation and central dyarchy
RESERVED CENTRE: defence, external affairs, ecclesiastical affairs, tribal areas

1935 INSTITUTIONAL DEPTH

bicameralism in Bengal, Bombay, Madras, Bihar, Assam, United Provinces
Federal/Provincial/Joint PSC | Auditor-General | Federal Railway Authority
Council of India abolished | Burma separated | Orissa and Sind created
franchise expanded but qualification-based | Governors retain safeguards
RBI CONTROL: RBI Act 1934 created the bank, operations began 1935

1947 SOVEREIGNTY BRIDGE

20 Feb Attlee -> 3 Jun Plan -> 18 Jul Act -> 15 Aug Dominions
-> Viceroy and Secretary of State for India abolished
-> Assemblies legislate, frame constitutions and repeal British Acts
-> paramountcy lapses; accession is not automatic absorption
-> adapted 1935 Act prevents a legal-administrative vacuum
-> 26 Nov 1949 adoption -> 26 Jan 1950 Republic

INSTITUTIONAL LINEAGES

EXECUTIVE: GG Bengal -> GG India -> Viceroy -> parliamentary executive
LEGISLATURE: centralisation -> nomination -> scrutiny -> election -> responsibility
JUDICIARY: Calcutta Supreme Court -> High Courts 1861 -> Federal Court 1937 -> Supreme Court
SERVICES: patronage -> 1932 competition -> PSC 1936 -> 1985 commissions -> UPSC/SPSC
FINANCE/AUDIT: Diwani -> budget scrutiny -> provincial budgets -> RBI/audit -> CAG
RULE: ancestry does not provide identical power, independence or purpose.

EXAM CONTROL AND VERDICT

1773 GG Bengal | 1833 GG India | 1858 Viceroy
1909 separate electorate | 1919 provincial dyarchy | 1935 autonomy
1935 federation/central dyarchy: provided, NOT commenced
1947 paramountcy: lapsed, NOT automatically transferred
ANSWER: claim -> named Act -> effect -> limit -> retained/transformed/rejected
VERDICT: inherited machinery + democratic rupture = constitutional transformation.